This is for information and instruction. Do not file it.

HOW TO REQUEST AN APPELLATE COURT FEE WAIVER

1

FILL OUT AND FILE THE FORMS.

To start or respond to an appeal in the Illinois Appellate Court, there are fees and other costs listed below:

- Filing Fees: The fees charged by the appellate court under Illinois Supreme Court Rule 313 are:
  - $50 for the person filing the appeal (appellant).
  - $30 for all other people participating in the appeal (appellee and any other people).
- Other Fees and Costs: This form **cannot** be used to waive fees charged by the trial court or by court reporters for preparation of the record on appeal.

If you received a fee waiver in the **trial court**, it does **not** apply to your appeal. If you cannot afford the fees listed above, you must ask the appellate court to let you participate in an appeal for free or at a reduced cost by filling out the *Application for Waiver of Appellate Court Fees* and *Order on Application for Waiver of Appellate Court Fees.* This form tells the appellate court about your income, expenses, and any public benefits you receive so that the court can decide whether you qualify for a fee waiver.

Use these forms:

- *Application for Waiver of Appellate Court Fees*
- *Order on Application for Waiver of Appellate Court Fees*

2

WAIT FOR A DECISION.

After filing your forms, the court will review your *Application for Waiver of Appellate Court Fees* and decide if you have to pay any appellate court fees.

The court may need more information about your financial circumstances. If so, the Appellate Clerk will let you know how to provide more information for your *Application*.

3

RECEIVE ORDER.

After the court decides, they will send you an order. This order will say if you must pay none of the court fees, some of the court fees, or all of the court fees.

The Appellate Clerk will mail or email you a copy of the order.

Laws covering these forms: 735 ILCS 5/5-105 and 5/5-105.5; Illinois Supreme Court Rules 298 and 313.

This packet is not legal advice. It provides general instructions on how to use these forms in your appeal. It cannot and does not try to cover everything that might happen in your appeal. Your use of the forms does not guarantee you will be successful in your appeal.

Appellate districts also have local rules that you must follow **that are not covered in these instructions.** Check the local rules for your district at ilcourts.info/appl-local-rules or call the clerk's office for instructions ilcourts.info/appl-clerks.

STEP 1

FILL OUT AND FILE THE FORMS.

ARE THESE FORMS FOR ME?

You may use these forms to ask the appellate court to let you participate in an appeal for free or at a reduced cost when:

- You are participating in an appeal with the Illinois Appellate Court.

Do not use these forms if:

- Your case is in the circuit court or in the Illinois Supreme Court. There are separate *Application for Waiver of Court Fees* forms that you must file with those courts at ilcourts.info/forms.

Forms required:

- ***Application for Waiver of Appellate Court Fees:*** Is used to tell the court whether you get any public benefits and your income and expense information, so they can decide if you can participate in an appeal for free or at a reduced cost.
- ***Order on Application for Waiver of Appellate Court Fees*:** Is used by the court to say whether your *Application* is granted or denied.

You can find all of the appellate court forms online at ilcourts.info/appl-forms.

How will I know if there is a fee?

- There are no fees for filing an *Application for Waiver of Appellate Court Fees*.
- However, there are other fees in the Illinois Appellate Court, which are based on Illinois Supreme Court Rule 313. Rule 313 requires the person filing the appeal (appellant) to pay a $50 fee and all other people participating in the appeal to pay a $30 fee. This fee is paid when you file your first document with the appellate court, so you must file your *Application for Waiver of Appellate Court Fees* with that document.

Is there a deadline for filing an *Application for Waiver of Appellate Court Fees*?

- You must file an *Application for Waiver of Appellate Court Fees* by the time you file your **first document** with the appellate court.
- It might take the court a couple of weeks to review your *Application* and to decide whether you have to pay fees, so don't wait until the last minute.
- You are responsible for knowing if there are other deadlines to file documents with the court. If you are not sure of the deadlines for your appeal (for example, when your docketing statement or your brief is due), call the Appellate Clerk's office.

EXTRA HELP FILLING OUT THE FORMS

Fee Waiver Easy Form

Illinois Legal Aid Online has an Easy Form program that helps you complete your forms. Easy Forms ask simple questions and put your answers in the right places on the forms. At the end of the program you can download or email your forms to e-file or print them.

Easy Forms are free to use. Visit ilao.info/ac-fee-waiver-easy-form or scan the QR code to use the Easy Form.

Appellate Resource Program

The Illinois Supreme Court Commission on Access to Justice and the Administrative Office of the Illiois Courts' Access to Justice Division have many resources to help with civil appeals. This includes guides on the appeals process, one-page overviews, timelines, videos, and other materials to help you with your appeal. You can find these resources at ilcourts.info/appl-resources.

Free Legal Answers for Civil Appeals

If you are representing yourself and have a question about your civil appeal, you can submit your question to the Illinois Free Legal Answers for Civil Appeals at il.freelegalanswers.org and have it answered by a pro bono lawyer. You must meet income qualifications to use the program. More information about how to use the program can be found at ilcourts.info/appl-resources. This service is not available for criminal appeals or appeals in the federal court system.

IL Court Help

For more information about court processes, including how to fill out and file forms, **call or text Illinois Court Help** at 833-411-1121 or go to ilcourthelp.gov.

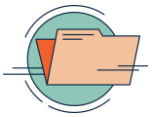
If there are any words or terms used in these instructions that you do not understand, please **visit Illinois Legal Aid Online** at ilao.info/glossary. You may also find more information, resources, and the location of your local legal self-help center at ilao.info/lshc-directory.

ILAO LEGAL HELP. ANYTIME. ANYWHERE.

HOW TO FILE THE FORMS

E-filing

- After you fill out your court forms, file them with the appellate court in your district. You can find your district here: ilcourts.info/appl-court-info. This is done by electronic filing, called "e-filing." You do not have to e-file if:
  - You qualify for an exemption (see the Not E-filing section below) or
  - Your case involves a criminal matter or is filed under the Juvenile Court Act of 1987.
- You must file your court forms by the specific filing deadline that applies to your case. If you are uncertain as to when the filing deadline is, call the Clerk's office.
- Most people e-file their forms using Odyssey eFileIL at ilcourts.info/efile.
- Follow step-by-step instructions and watch videos that walk you through the steps for e-filing at ilcourts.info/efile-info.
- E-filing is easier on a computer. It may not work on a cell phone or tablet.
- If you do not have access to a computer or if you need help e-filing, take your completed forms to a public library or a Circuit Clerk, Appellate Clerk, or Supreme Court Clerk's office. These places offer public computers where you can e-file your forms.
  - Depending on your courthouse, you can bring your forms on paper and there may be public computers with a scanner where you can turn your paper forms into electronic files.
  - Librarians and courthouse staff may be able to help you e-file, but they cannot provide legal advice.
- Be sure to check your local appellate court rules to see if paper copies are also required.



Not E-filing

- Some people are not required to e-file, which means they can file paper forms at the courthouse or by mail. People who do not have to e-file are:
  - Inmates in prison or jail who do not have a lawyer.
  - People with a disability that keeps them from e-filing.
- You may also qualify for an exemption from e-filing if you:
  - Do not have internet or computer access in your home or can't meaningfully use it.
  - Do not have an email account.
  - Do not have a credit card, debit card, or bank account.
  - Have trouble reading, writing, or speaking English.
  - Tried to e-file your forms, but you were not able to because the equipment or help you needed was not available.
- To ask for an exemption from e-filing, use the form at ilcourts.info/appl-exempt. If you cannot print this form, then ask for it at your local courthouse.
  - File your *Certification for Exemption from E-Filing* (*Appellate*) form along with your other court forms at the Appellate Clerk's office or by mail.
  - Bring or send your signed court forms and at least two copies of your forms to the Appellate Clerk's office. **NOTE:** Your appellate district's local rules may require a different number of paper copies. Check the local rules for your district at ilcourts.info/appl-local-rules or call the clerk's office for further instructions.
  - If you need to make copies of your forms, you can do that at the Appellate Clerk's office. They may charge you a fee to make copies.

WHAT'S NEXT

STEP 2

WAIT FOR A DECISION.

- After filing your forms, the court will review your *Application*. The clerk's office will notify you if you need to give more information or documents.

STEP 3

RECEIVE COURT ORDER.

After the court makes a decision, the clerk will send you an *Order on Application for Waiver of Appellate Court Fees*.

- This *Order* will say if you have to pay any court fees.
- Depending on your circumstances, the court may order that you participate for free, pay part of the fees (from 25%-75%), or pay all of the fees.
- If the court decides you have to pay all or some of the court fees, you have to pay by the deadline listed in the *Order on Application for Waiver of Appellate Court Fees*. If you do not pay by the deadline, the court may dismiss your case or find against you.